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PART 1.—ORIGINAL ARTICLES.

Presidential Address, delivered at the Annual Meeting of the Medico-Psychological Association, held at the Royal College of Physicians, London, July 27th, 1883. By W. ORANGE, M.D., F.R.C.P.

GENTLEMEN,—In doing me the honour to place me in the position of your President to-day, in succession to the distinguished Professor of Medicine in the University of Glasgow, I cannot but be fully aware that you are prepared to accept from me an address of a very different order from that with which the Association was favoured last year. Professor Gairdner brought prominently to our notice the fundamental principle that the profession of medicine, and the healing art on which it rests, are one, and not manifold; and, in reminding us that those whose special lot it is to minister to sufferers from diseased mental function, proceed upon the same lines, and pursue the same method, in the matters of diagnosis and of treatment, as do those physicians who minister to other diseases of the human frame, he chose a theme than which none could have been more grateful to his audience; whilst it is needless to say that he clothed that theme in language, and embellished it with illustration, the eloquence and wealth of which are of too recent memory to permit of a successor venturing, for the present, to place foot on the same ground. Whilst, then, I am sure that each and all of us would desire to keep the theme of last year's address very prominently in mind, and would, perhaps, wish to say in a somewhat altered version of Terence, "Medicus sum; medici nihil a me alienum puto," I deem myself, on the present occasion, peculiarly fortunate that

the description of medical work that has fallen to my lot during several years past has had relation to a somewhat special matter; and it is upon this special matter, the relation of mental derangement to offences against the law of the land, that I ask your indulgence for the few words which I offer to you to-day. Two incidents have occurred since the last annual meeting of this Association, which, if I had been in doubt as to the choice of a subject, would have gone far towards removing that doubt. I allude to the presentation to Parliament of the Report of the Commission, appointed in 1880, to inquire into the subject of criminal lunacy, and to the appearance of a new edition of Mr. Justice Stephen's work on the "History of the Criminal Law of England." In attempting to give even the briefest sketch of the progressive steps by which the measures for the care and treatment of criminal lunatics have advanced during recent years, the first question that naturally arises is, what is a criminal lunatic? The name appears, at first sight, to imply a contradiction of terms, inasmuch as a person who is a lunatic may be said to be incapable of committing what, in the strictest sense of the word, can be called a crime. But, in spite of this seeming inconsistency, the term has been in use for the last eighty years, and it appears likely to continue to be used, because it is, after all, really descriptive of the class of persons to whom it is applied; inasmuch as every criminal lunatic, of whatever class, has not only been charged before a court of law with the commission of some crime, but is actually in custody, so long as he remains in the class of criminal lunatics, on account of such crime—the nature of the crime, and the circumstances of its commission, determining whether the person ever enters the class of criminal lunatics or not. If the crime is not grave, the person accused is generally handed over to the parish authorities or to friends, to be dealt with in accordance with the provisions of the general lunacy laws; but if, on the other hand, the crime is grave, or if the circumstances of its commission are such as to give reason for believing that society would be insufficiently protected by trusting to the operation of the general lunacy laws, then the individual passes on into the class of criminal lunatics, and becomes subject to special statutes.

Insanity and crime may be combined in an infinite variety of proportions; and if the term "criminal lunatic" were expanded so as to be made to include, on the one hand, all insane persons who had ever committed any act contrary to law, and, on the other hand, every criminal whose mental organization

falls short of an ideal standard of perfection, it might be, in that way, made to embrace a very large proportion of the inmates of the lunatic asylums and also of the prisons of the country.

But it is a term which, though useful, cannot claim for itself mathematical precision, and the intention is that no person who has committed a crime shall become a criminal lunatic unless, having regard to the nature of the crime, the protection of the community requires this to be done; and also, that no criminal whose mental organization is imperfect shall be included, unless the defect or derangement of mind be of such an extent or degree as to prevent the application of the penal code from being efficacious; or, in other words, such as to render the person an unfit subject for penal discipline.

In a more ideal state of society than that which now exists, the class of criminal lunatics would disappear, because no one would be sentenced to punishment without his mental state being ascertained before sentence, instead of, as now so generally happens, afterwards; and, furthermore, because persons known to be insane would then be placed under proper control before, and not, as now, after they have committed some alarming act of homicide or violence.

But we are far from this ideal state, and, therefore, it happens that the number of insane persons who are left to enjoy, as it is termed, their freedom, until they have done some terrible deed, is large; and society is thus constantly being called upon to consider in what way it shall cover its own sins of omission.

The statutes relating to criminal lunatics have, therefore, as might be imagined, been enacted piecemeal to meet the occasion as it arose. I do not intend to weary you with anything approaching to a minute and detailed account of those statutes, which are to be found fully stated in the very useful works of Archbold and of Fry, but I propose merely to glance at their general tendency and scope. It is unnecessary to go very far back into ancient history to make a beginning. There is no record of the existence of a special asylum for criminal lunatics in ancient Greece or Rome; nor need we linger with the view of determining exactly what may have been Horace's opinion with respect to the mental condition of Orestes, when he wrote—

> Quin ex quo est habitus male tutæ mentis Orestes,
> Nil sane fecit quod tu reprehendere possis.

But we may come at once to more modern times.

It is estimated by Mr. Justice Stephen that, at the close of the sixteenth century, the number of persons executed annually in England and Wales for ordinary crimes was about 800; and, if regard be had to the difference of population between then and now, it may easily be imagined that this summary mode of dealing with so large a proportion of breakers of the law must have cut short many difficulties, and must have removed, at once and for ever, a large number of insane persons, intermingled with sane and responsible criminals. Indeed, long after that time, the existence of mental derangement in persons accused of the commission of crime had little or no effect upon the treatment accorded to them; because the existence of insanity was not readily admitted, and also, further, because in those times, when a whip and a dark house were regarded as being the appropriate treatment of a lunatic, the lot of any unfortunate being was not much ameliorated by being classed in that category. Matters began to improve towards the close of the last century; and, at last, in the year 1800, the trial of Hadfield for firing at George III., in Drury Lane Theatre, produced a definite amendment both with regard to law and practice. Hadfield had served his King and country in the wars—he had been gravely wounded in the battle of Lincelles—and he had given unmistakable proof of serious mental derangement long before the commission of the act for which he was tried. The evidence of his insanity, and of the connection existing between his mental derangement and his attempt upon the life of the King, was conclusive, but then the question arose as to what was to be done with him; and, with reference to this question, the presiding judge, Lord Kenyon, made use of the following words, which have served as a guide from that time to the present for the proper treatment of persons similarly situated. Lord Kenyon said: "For his own sake, and for the sake of society at large, he must not be discharged, for this is a case which concerns every man of every station, from the King upon the throne to the beggar at the gate; people of both sexes and of all ages may, in an unfortunate frantic hour, fall a sacrifice to this man, who is not under the guidance of sound reason, and, therefore, it is absolutely necessary for the safety of society that he should be properly disposed of, all mercy and humanity being shown to the unfortunate creature; but, for the sake of the community, he must somehow or other be taken care of with all the attention and relief that can be afforded him."

Here, then, were two main principles clearly and humanely set forth—the safety of society was to be secured, by not discharging the prisoner; but, at the same time, this afflicted man, who was "not under the guidance of sound reason," was to be taken care of with all the attention and relief possible. Although more than eighty years have passed since those words were uttered, they would afford but little room for amendment if submitted to revision at the present day; and, combining as they do the expression of humanity with that of prudence, they remain as applicable to criminal lunatics of the present day as they were to the person with reference to whom they were spoken. The immediate result of the trial and acquittal, on the ground of insanity, of Hadfield, was the passing of the "Insane Offenders Bill," which became law on the 28th July, 1800. This was the Act which made provision for the detention of insane offenders, acquitted on the ground of insanity, or found insane on arraignment, for whatever length of time might be required by considerations of public safety. This statute, however, only applied to persons charged with offences classed as treason, murder and felony; and it was not until forty years later that, owing to the beneficial results of the former statute, similar provisions were applied to persons charged with misdemeanours.

In the meantime, very soon after the passing of the Act of 1800, the question began to press for settlement: What was to be done with persons acquitted on the ground of insanity under the provisions of that Act? As early as 1807, Mr. Wynne, who did much in his day to improve the treatment of the insane, obtained a Select Committee to inquire into the state of criminal and pauper lunatics; and this is the first appearance, so far as I know, of the term "criminal lunatic" in official documents. The report of Mr. Wynne's Committee was ordered to be printed on the 15th of July, 1807; and this report stated that, from the time of the passing of the Act in 1800, the number of persons detained under its provisions was 37, and the report went on to recommend that a building should be erected for the separate confinement of these persons, and of others who might in future come under the provisions of that Act for offences committed during a state of insanity. But, although this wise recommendation was made so long ago, and although it was the natural corollary of the statute by which a special class of insane persons was marked out, more than fifty years elapsed before full effect was

given to so obviously reasonable a recommendation. At first, criminal lunatics had to remain in gaols, a plan, as Mr. Wynne's Committee reported, equally destructive of all possibility of the recovery of the insane, and of the security and comfort of the other prisoners.

In 1808 the House of Commons presented an address to His Majesty, praying that a separate building might be erected accordingly; but nothing was then done. When, however, Bethlem was rebuilt, in the year 1816, on its present site, a wing, which was called the criminal wing, was erected; but the amount of the provision made was quite inadequate, and in a few years the extent of the accommodation for criminal lunatics at Bethlem had to be doubled, and still without keeping pace with the requirements. In 1835 a Committee of the House of Lords, appointed to inquire into the state of prisons, found therein many persons who had been acquitted on the ground of insanity, and strongly recommended that such persons should be removed from prisons to suitable asylums. The Committee also extended their recommendations to other classes of insane prisoners, with the result that, in 1840, an Act was passed making provision for the removal to asylums of persons certified to be insane after sentence. The effect of this statute was, as might naturally be expected, to rapidly increase the number of criminal lunatics who were sent to ordinary lunatic asylums, whilst a further cause of increase of numbers was soon afterwards developed by the discontinuance of transportation. As a result of this large increase of numbers, an arrangement was entered into, in 1849, between the Secretary of State and the proprietors of Fisherton House Asylum, near Salisbury, under which arrangement accommodation was provided at that asylum for the criminal lunatics who were in excess of the number for whom provision existed at Bethlem; but still, as ever, the extent of the provision lagged behind the requirements, and, to pass over minor details, at last the matter was taken up vigorously, in the year 1852, by the Earl of Shaftesbury, who thus added one more to the many benefits already conferred by him on the most helpless and pitiable members of the human race. Lord Shaftesbury,* after presenting a petition on the 18th of March, 1852, to the House of Lords, from the Chairman of the Visiting Magistrates of the Lunatic Asylum for the County of Leicester, praying for

* Hansard, 3rd s., Vol. cxix., p. 1230.

an alteration of the law respecting criminal lunatics, proceeded to move:—"That an humble address be presented to Her Majesty, praying that Her Majesty will be graciously pleased to take into her consideration the expediency of establishing a State Asylum for the care and custody of those who are denominated criminal lunatics."

His Lordship went on to say that the great care bestowed of late on both our public and our private asylums had called attention to the fact that the custody of these criminal lunatics had been a great bar to the improvement of those institutions. The Commissioners in Lunacy had reported in 1849, 1850, and 1851 to the Lord Chancellor on the annoyances, perils, and injurious effects of the actual system, and had proposed remedies for the system. They had also reported at various times to the Secretary of State, and had prayed for relief, setting forth such circumstances as these—that there was one criminal lunatic who had escaped from Gateshead Fell four times in a few months, and that there was another who had escaped from Hoxton six times in the same period; but all to no purpose. His Lordship further said that the term "criminal lunatic" seemed to him to involve something of a contradiction; nevertheless, it was the ordinary and received term, and the only one that he could use on that occasion.

This definite and vigorous expression of opinion on the part of Lord Shaftesbury soon bore fruit; and, in the year 1856, a site was selected, upon which Broadmoor Asylum was afterwards erected. That asylum was opened in 1863, and I have, in the following tabular statements, attempted to give, in a condensed form, some of the results of its operations during twenty years, thinking that, although it is impossible for me to read these figures to you now, some members of the Association may, perhaps, be interested in glancing over them after they are printed:—

Classification of the Crimes and Sentences of all Patients admitted (including re-admissions) from the opening of the Asylum to the 31st December, 1882.

Crimes.	Total number admitted from the opening of the Asylum down to the 31st December, 1882.			Classified with reference to the Period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing Sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	237	152	389	33	15	48	40	39	79	138	90	228	17	1	18	9	7	16	—	—	—
Manslaughter	14	9	23	1	4	5	5	1	6	1	1	2	—	—	—	7	3	10	—	—	—
Attempt to murder, maim, etc.	209	36	245	11	1	12	44	5	49	117	25	142	—	—	—	37	5	42	—	—	—
Concealment of Birth	—	3	3	—	—	—	—	2	2	—	—	—	—	—	—	—	—	—	—	1	1
Rape	16	—	16	—	—	—	2	—	2	1	—	1	—	—	—	13	—	13	—	—	—
Assault, common	17	3	20	1	—	1	3	—	3	6	—	6	—	—	—	3	1	4	4	2	6
Do. with intent to ravish	8	—	8	—	—	—	4	—	4	4	—	4	—	—	—	—	—	—	—	—	—
Do. indecent	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Unnatural offences	17	—	17	1	—	1	2	—	2	6	—	6	—	—	—	7	—	7	1	—	1
Treasonable and seditious offences	7	—	7	1	—	1	3	—	3	2	—	2	—	—	—	1	—	1	—	—	—
Burglary and housebreaking	109	7	116	4	—	4	7	1	8	7	—	7	—	—	—	88	5	93	3	1	4
Robbery on the highway	6	1	7	—	—	—	—	—	—	—	—	—	—	—	—	6	1	7	—	—	—
Robbery with violence	7	2	9	—	—	—	—	—	—	1	—	1	—	—	—	6	1	7	—	1	1
Sheep stealing	8	—	8	—	—	—	—	—	—	2	—	2	—	—	—	5	—	5	1	—	1
Horse stealing	9	—	9	—	—	—	1	—	1	2	—	2	—	—	—	5	—	5	1	—	1
Larceny and petty thefts	241	106	347	1	1	2	7	2	9	7	4	11	—	—	—	222	89	311	4	10	14
Frauds and embezzlements	4	—	4	—	—	—	—	—	—	—	—	—	—	—	—	4	—	4	—	—	—
Receiving stolen goods	9	—	9	—	—	—	—	—	—	—	—	—	—	—	—	9	—	9	—	—	—
Obtaining goods by false pretences	4	—	4	—	—	—	—	—	—	1	—	1	—	—	—	3	—	3	—	—	—
Arson and malicious burning	87	7	94	3	—	3	18	2	20	27	1	28	—	—	—	39	4	43	—	—	—
Wilful damage and other malicious offences	3	3	6	—	—	—	1	—	1	1	—	1	—	—	—	1	—	1	—	3	3
Forgery	7	—	7	—	—	—	—	—	—	—	—	—	—	—	—	7	—	7	—	—	—
Uttering counterfeit coin, coining, etc.	10	2	12	—	—	—	—	—	—	—	—	—	—	—	—	10	2	12	—	—	—
Riot and breach of the peace	1	1	2	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	1	2
For want of sureties	1	3	4	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	3	4
Libel	2	—	2	1	—	1	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—
Under the Vagrant Laws	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1
Night poaching, being armed	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Felony (not otherwise described)	45	9	54	1	—	1	—	1	1	5	2	7	—	—	—	38	4	42	1	2	3
Threatening by letter	6	1	7	—	—	—	2	—	2	3	—	3	—	—	—	1	1	2	—	—	—
Other misdemeanours	3	1	4	1	—	1	1	—	1	—	—	—	—	—	—	1	—	1	—	1	1
Deserters from the Army and Navy	6	—	6	—	—	—	—	—	—	—	—	—	—	—	—	5	—	5	1	—	1
Insubordination as soldiers	29	—	29	—	—	—	—	—	—	—	—	—	—	—	—	29	—	29	—	—	—
Attempting self-murder	4	—	4	—	—	—	—	—	—	4	—	4	—	—	—	—	—	—	—	—	—

Classification of the Crimes and Sentences of all Patients discharged out of Custody from the opening of the Asylum down to the 31st of December, 1882.

Crimes.	Total number discharged out of Custody down to the 31st December, 1882.			Classified with reference to the Period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing Sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	16	40	56	—	4	4	1	5	6	14	31	45	—	—	—	1	—	1	—	—	—
Manslaughter	1	—	1	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—
Attempt to murder, maim, &c.	22	10	32	—	—	—	2	2	4	18	8	26	—	—	—	2	—	2	—	—	—
Assault (common)	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1
Treasonable and seditious offences ...	2	—	2	—	—	—	—	—	—	1	—	1	—	—	—	1	—	1	—	—	—
Burglary and housebreaking	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Robbery with violence	—	1	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	1
Horse-stealing	1	—	1	—	—	—	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—
Larceny and petty thefts...	6	7	13	—	—	—	1	1	2	4	2	6	—	—	—	1	4	5	—	—	—
Arson and malicious burning	6	—	6	—	—	—	—	—	—	6	—	6	—	—	—	—	—	—	—	—	—
Forgery	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Uttering counterfeit coin, coining, &c. ...	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Felony (not otherwise described)... ...	—	2	2	—	—	—	—	—	—	—	2	2	—	—	—	—	—	—	—	—	—
Threatening by letter	1	—	1	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—
Attempting self-murder	1	—	1	—	—	—	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—
Total...	60	60	120	—	4	4	6	8	14	45	43	88	—	—	—	8	4	12	1	1	2

CLASSIFICATION of the CRIMES and SENTENCES of all Patients removed, on their recovery, to different prisons, either for trial, or in order to complete their sentences, from the opening of the Asylum down to the 31st December, 1882.

Crimes.	Total number removed, on recovery, to Prisons, down to 31st December, 1882.			Classified with reference to the Period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing Sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	1	1	2	1	—	1	—	—	—	—	—	—	—	—	—	—	1	1	—	—	—
Attempt to murder, maim, &c.... ...	3	—	3	—	—	—	—	—	—	—	—	—	—	—	—	3	—	3	—	—	—
Burglary and housebreaking	7	1	8	1	—	1	—	—	—	—	—	—	—	—	—	6	1	7	—	—	—
Sheep stealing	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Larceny and petty theft	30	7	37	—	—	—	2	—	2	—	—	—	—	—	—	28	7	35	—	—	—
Arson and malicious burning	2	1	3	—	—	—	—	—	—	—	—	—	—	—	—	2	1	3	—	—	—
Forgery	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Uttering counterfeit coin, coining, &c....	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Felony (not otherwise described) ...	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Insubordination as soldiers	3	—	3	—	—	—	—	—	—	—	—	—	—	—	—	3	—	3	—	—	—
Total	50	10	60	2	—	2	2	—	2	—	—	—	—	—	—	46	10	56	—	—	—

Classification of the Crimes and Sentences of all Patients transferred to other Asylums or Workhouses from the opening of the Asylum down to the 31st of December, 1882. (Not including Patients transferred to Perth or Fisherton whilst still criminal lunatics.)

Crimes.	Total Number transferred to other Asylums down to 31 December, 1882.			Classified with reference to the Period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	1	1	2	—	—	—	1	—	1	—	1	1	—	—	—	—	—	—	—	—	—
Manslaughter	4	1	5	—	—	—	—	—	—	—	—	—	—	—	—	4	1	5	—	—	—
Attempt to murder, maim, &c.	23	3	26	—	—	—	—	—	—	1	—	1	—	—	—	22	3	25	—	—	—
Concealment of birth	—	1	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	1
Rape	7	—	7	—	—	—	—	—	—	—	—	—	—	—	—	7	—	7	—	—	—
Assault, common	5	3	8	—	—	—	—	—	—	—	—	—	—	—	—	3	1	4	2	2	4
Assault, indecent	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Unnatural offences	7	—	7	—	—	—	1	—	1	1	—	1	—	—	—	4	—	4	1	—	1
Burglary and housebreaking	76	3	79	—	—	—	2	—	2	2	—	2	—	—	—	69	2	71	3	1	4
Robbery on the highway	5	1	6	—	—	—	—	—	—	—	—	—	—	—	—	5	1	6	—	—	—
Robbery with violence	5	1	6	—	—	—	—	—	—	—	—	—	—	—	—	5	1	6	—	—	—
Sheep-stealing	2	—	2	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	1	—	1
Horse-stealing	6	—	6	—	—	—	—	—	—	—	—	—	—	—	—	5	—	5	1	—	1
Larceny and petty thefts	163	56	219	—	—	—	—	—	—	—	—	—	—	—	—	159	49	208	4	7	11
Frauds and embezzlements	3	—	3	—	—	—	—	—	—	—	—	—	—	—	—	3	—	3	—	—	—
Receiving stolen goods	7	—	7	—	—	—	—	—	—	—	—	—	—	—	—	7	—	7	—	—	—
Obtaining goods by false pretences	4	—	4	—	—	—	—	—	—	1	—	1	—	—	—	3	—	3	—	—	—
Arson and malicious burning	32	1	33	—	—	—	1	—	1	—	—	—	—	—	—	31	1	32	—	—	—
Wilful damage & other malicious offences	1	3	4	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	3	3
Forgery	3	—	3	—	—	—	—	—	—	—	—	—	—	—	—	3	—	3	—	—	—
Uttering counterfeit coin, coining, &c.	7	1	8	—	—	—	—	—	—	—	—	—	—	—	—	7	1	8	—	—	—
Riot and breach of the peace	1	1	2	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	1	2
For want of sureties	1	3	4	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	3	4
Under the Vagrancy Laws	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1
Night-poaching, being armed	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Felony (not otherwise described)	36	4	40	—	—	—	—	—	—	—	—	—	—	—	—	35	2	37	1	2	3
Threatening by letter	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Other misdemeanours	1	1	2	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	1	1
Deserters from the Army and Navy	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Insubordination as soldiers	3	—	3	—	—	—	—	—	—	—	—	—	—	—	—	3	—	3	—	—	—
Total	408	84	492	—	—	—	5	—	5	5	1	6	—	—	—	382	62	444	16	21	37

Those included in these two columns were transferred upon expiration of sentence.

CLASSIFICATION of CRIMES and SENTENCES of Patients transferred to Perth or Fisherton, whilst still criminal lunatics, from the opening of the Asylum down to the 31st of December, 1882.

Crimes.	Total number to the 31st Dec., 1882.			Classified with reference to the Period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing Sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Attempt to murder, maim, &c. ...	—	1	1	—	—	—	—	—	—	—	—	—	—	—	—	—	1	1	—	—	—
Rape	2	—	2	—	—	—	—	—	—	—	—	—	—	—	—	2	—	2	—	—	—
Unnatural offence	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Burglary and housebreaking	5	—	5	—	—	—	—	—	—	—	—	—	—	—	—	5	—	5	—	—	—
Larceny	8	2	10	—	—	—	—	—	—	—	—	—	—	—	—	8	2	10	—	—	—
Arson	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Total	18	3	21	—	—	—	—	—	—	—	—	—	—	—	—	18	3	21	—	—	—

Classification of the Crimes and Sentences of Patients who have escaped at various times from the opening of the Asylum down to the 31st of December, 1882, and who were not re-captured before making up the books on the 31st of December of the year of escape.

Crimes.	Total Number to the 31st December, 1882.			Classified with reference to the period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Rape	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Burglary and housebreaking	2	—	2	—	—	—	—	—	—	—	—	—	—	—	—	2	—	2	—	—	—
Larceny	1	1	2	—	—	—	—	—	—	—	—	—	—	—	—	1	1	2	—	—	—
Total	5	1	6	—	—	—	—	—	—	—	—	—	—	—	—	5	1	6	—	—	—

N.B.—Three of the above persons were re-captured in subsequent years.

Classification of the Crimes and Sentences of all Patients who died from the opening of the Asylum down to the 31st of December, 1882.

Crimes.	Total Number of Deaths down to Dec. 31, 1882.			Classified with reference to the Period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	62	25	87	11	3	14	13	11	24	36	7	43	1	—	1	1	4	5	—	—	—
Manslaughter	2	2	4	—	1	1	1	—	1	—	1	1	—	—	—	1	—	1	—	—	—
Attempt to murder, maim, &c.	50	4	54	6	—	6	14	—	14	27	3	30	—	—	—	3	1	4	—	—	—
Rape	4	—	4	—	—	—	—	—	—	1	—	1	—	—	—	3	—	3	—	—	—
Assault, common	3	—	3	—	—	—	2	—	2	1	—	1	—	—	—	—	—	—	—	—	—
Do. with intent to ravish	3	—	3	—	—	—	2	—	2	1	—	1	—	—	—	—	—	—	—	—	—
Unnatural offences	3	—	3	1	—	1	—	—	—	1	—	1	—	—	—	1	—	1	—	—	—
Treasonable and seditious offences ...	1	—	1	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—
Burglary and housebreaking	6	—	6	—	—	—	1	—	1	1	—	1	—	—	—	4	—	4	—	—	—
Robbery on the highway	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Robbery with violence	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Sheep-stealing	3	—	3	—	—	—	—	—	—	—	—	—	—	—	—	3	—	3	—	—	—
Horse-stealing	1	—	1	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—
Larceny and petty thefts	27	18	45	1	1	2	1	1	2	3	2	5	—	—	—	22	11	33	—	3	3
Receiving stolen goods	2	—	2	—	—	—	—	—	—	—	—	—	—	—	—	2	—	2	—	—	—
Arson and malicious burning	22	4	26	1	—	1	7	2	9	11	1	12	—	—	—	3	1	4	—	—	—
Forgery	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Uttering counterfeit coin, coining, &c.	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Libel	1	—	1	—	—	—	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—
Felony (not otherwise described) ...	4	3	7	1	—	1	—	1	1	1	—	1	—	—	—	2	2	4	—	—	—
Threatening by letter	1	—	1	—	—	—	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—
Deserters from the Army and Navy ...	2	—	2	—	—	—	—	—	—	—	—	—	—	—	—	2	—	2	—	—	—
Insubordination as soldiers	5	—	5	—	—	—	—	—	—	—	—	—	—	—	—	5	—	5	—	—	—
Other misdemeanours	1	—	1	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—
Total	207	56	263	22	5	27	43	15	58	85	14	99	1	—	1	56	19	75	—	3	3

Classification of the Crimes and Sentences of Patients remaining in the Asylum on 31st December, 1882.

Crimes.	Total number remaining in the Asylum on the 31st of December, 1882.			Classified with reference to the Period at which Insanity was recognised.																	
				Certified to be Insane whilst awaiting Trial or Judgment.			Found Insane by Jury on Arraignment.			Acquitted on the ground of Insanity.			Reprieved on the ground of Insanity.			Certified to be Insane whilst undergoing Sentences of Penal Servitude.			Certified to be Insane whilst undergoing shorter terms of Imprisonment.		
	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.	M.	F.	T.
Murder	155	85	240	21	8	29	25	23	48	88	51	139	16	1	17	5	2	7	—	—	—
Manslaughter	7	6	13	1	3	4	3	1	4	1	—	1	—	—	—	2	2	4	—	—	—
Attempt to murder, maim, &c.... ...	111	18	129	5	1	6	28	3	31	71	14	85	—	—	—	7	—	7	—	—	—
Concealment of birth	—	2	2	—	—	—	—	2	2	—	—	—	—	—	—	—	—	—	—	—	—
Rape	2	—	2	—	—	—	2	—	2	—	—	—	—	—	—	—	—	—	—	—	—
Assault, common	8	—	8	1	—	1	1	—	1	5	—	5	—	—	—	—	—	—	1	—	1
Assault with intent to ravish	5	—	5	—	—	—	2	—	2	3	—	3	—	—	—	—	—	—	—	—	—
Unnatural offence	6	—	6	—	—	—	1	—	1	4	—	4	—	—	—	1	—	1	—	—	—
Treasonable and seditious offences ...	4	—	4	—	—	—	3	—	3	1	—	1	—	—	—	—	—	—	—	—	—
Burglary and housebreaking	12	3	15	3	—	3	4	1	5	4	—	4	—	—	—	1	2	3	—	—	—
Robbery with violence	1	—	1	—	—	—	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—
Sheep-stealing	2	—	2	—	—	—	—	—	—	2	—	2	—	—	—	—	—	—	—	—	—
Horse-stealing	1	—	1	—	—	—	—	—	—	1	—	1	—	—	—	—	—	—	—	—	—
Larceny and petty thefts	6	15	21	—	—	—	3	—	3	—	—	—	—	—	—	3	15	18	—	—	—
Arson and malicious burning	24	1	25	2	—	2	10	—	10	10	—	10	—	—	—	2	1	3	—	—	—
Wilful damage	2	—	2	—	—	—	1	—	1	1	—	1	—	—	—	—	—	—	—	—	—
Forgery	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Uttering counterfeit coin, &c.	—	1	1	—	—	—	—	—	—	—	—	—	—	—	—	—	1	1	—	—	—
Deserters from the Army and Navy ...	3	—	3	—	—	—	—	—	—	—	—	—	—	—	—	2	—	2	1	—	1
Felony	4	—	4	—	—	—	—	—	—	4	—	4	—	—	—	—	—	—	—	—	—
Other misdemeanours	1	—	1	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—
Sending threatening letters	3	1	4	—	—	—	1	—	1	2	—	2	—	—	—	—	1	1	—	—	—
Insubordinate as soldiers	18	—	18	—	—	—	—	—	—	—	—	—	—	—	—	18	—	18	—	—	—
Attempting self-murder	3	—	3	—	—	—	—	—	—	3	—	3	—	—	—	—	—	—	—	—	—
Libel	1	—	1	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	—	—	—
Embezzlement	1	—	1	—	—	—	—	—	—	—	—	—	—	—	—	1	—	1	—	—	—
Total	381	132	513	35	12	47	84	30	114	201	65	266	16	1	17	43	24	67	2	—	2

The following FIGURES, extracted from the ANNUAL VOLUMES of the JUDICIAL STATISTICS for ENGLAND and WALES, show the RATE of MORTALITY which has prevailed amongst CRIMINAL LUNATICS since the year 1856, and also show the Extent to which the Rate of Mortality, and the Degree of safe Custody, have been affected by the opening of Broadmoor Asylum.

In this table each year ends on the 29th of September.

(1.) Returns relating to the seven years immediately preceding the opening of Broadmoor.

Year.	Total Number of Criminal Lunatics under Detention in England and Wales during each Year.	Number of Deaths in each Year.	Number who escaped, and who were not recaptured before the end of each Year.
1856	686	21	6
1857	749	39	7
1858	798	33	1
1859	901	43	4
1860	957	51	9
1861	970	49	4
1862	1,017	43	7
Totals ...	6,078	279	38

(2.) Returns relating to the period subsequent to the opening of Broadmoor.

	In all other ASYLUMS in ENGLAND and WALES excepting Broadmoor.			IN BROADMOOR.		
Year.	Total Number of Criminal Lunatics under Detention during each Year.	No. of Deaths in each Year.	Number who escaped, and who were not recaptured before the end of each Year.	Total Number of Criminal Lunatics under Detention during each Year.	No. of Deaths in each Year.	Number who escaped, and who were not recaptured before the end of each Year.
1863	1,050	53	6	98	—	—
1864	1,017	38	6	292	4	1
1865	860	53	5	446	12	—
1866	723	49	2	455	18	—
1867	767	49	2	477	10	—
1868	309	11	3	644	7	—
1869	250	21	6	497	14	2
1870	310	21	4	488	13	—
1871	338	22	6	524	12	—
1872	313	20	3	562	10	—
1873	278	12	5	559	11	2
1874	299	21	3	554	13	—
1875	319	31	3	544	19	—
1876	338	18	6	546	16	—
1877	348	23	6	541	15	—
1878	341	15	3	526	10	—
1879	323	15	4	528	23	—
1880	316	16	1	532	16	—
1881	318	14	3	554	12	—
Totals...	8,817	502	77	9,367	235	5

The foregoing figures, reduced to percentages for the sake of more ready comparison, give the following results :—

Description of Asylums.	Rate per cent. of Deaths calculated upon the aggregate of the Yearly Totals of Numbers of Criminal Lunatics under Treatment during the Periods specified.	Rate per cent. of Instances in which Criminal Lunatics escaped and were not recaptured before the end of each year during the Periods specified.
In all the Asylums in England and Wales, taken together, in which criminal lunatics were confined during the seven years immediately preceding the opening of Broadmoor, from 1856 to 1862 inclusive ...	4·59	0·62
In all the Asylums in England and Wales, taken together, in which criminal lunatics were confined from 1863 to 1881 inclusive, with the Exception of Broadmoor ...	5·69	0·87
In Broadmoor, from the date of its opening in 1863 to the 29th of September, 1881 ...	2·50	0·05

The following Tabular Statement shows every instance of Escape that has taken place, from the opening of the Asylum, in 1863, up to the 31st of December, 1882, together with the date of recapture, where recapture has been effected.

Under Detention during Her Majesty's pleasure.		Under current Sentences of Penal Servitude or Imprisonment.		Date of escape.	Date of recapture.
M.	F.	M.	F.		
—	—	—	1	6th October, 1863 ...	6th October, 1863.
—	—	—	1	8th June, 1864	9th June, 1864.
—	—	1	—	19th September, 1864 ...	8th November, 1864.
—	—	—	1	29th October, 1864 ...	29th October, 1864.
1	—	—	—	25th November, 1864 ...	25th November, 1864.
—	—	1	—	8th April, 1865	9th April, 1865.
—	—	1	—	8th ,, ,, ...	9th ,, ,,
—	—	1	—	21st May, 1865	21st May, 1865.
1	—	—	—	26th July, 1867	26th July, 1867.
1	—	—	—	29th September, 1868 ...	2nd October, 1868.
—	—	1	—	4th November, 1868 ...	9th February, 1869.
—	—	1	—	8th ,, ,, ...	30th November, 1868.
—	—	1	—	8th ,, ,, ...	6th January, 1869.
—	—	1	—	25th December, 1868 ...	Not recaptured.
—	—	—	1	27th July, 1869	Not recaptured.
1	—	—	—	11th January, 1871 ...	16th January, 1871.
—	—	1	—	14th August, 1871 ...	20th August, 1871.
1	—	—	—	10th December, 1872 ...	10th December, 1872.
—	—	1	—	26th May, 1873	26th May, 1873.
—	—	1	—	12th July, 1873	Not recaptured.
—	—	1	—	7th August, 1873 ...	29th September, 1878.
—	—	1	—	12th November, 1873 ...	13th November, 1873.
—	—	1	—	6th December, 1874 ...	6th December, 1874.
1	—	—	—	12th October, 1878 ...	13th October, 1878.

If time had permitted, it would have been interesting to note the steps which, in the meantime, had been taken in the sister island.

Long after the date at which provision was made, in connection with Bethlem Hospital, for some of the criminal lunatics of England, the criminal lunatics of Ireland were still detained in gaols; and their pitiable state, in 1843, is graphically recorded in the report of a Parliamentary Commission. Those who then pleaded for the Irish criminal lunatics asked for arrangements similar to those existing in England, or, if that was impossible, prayed that the criminal lunatics of Ireland might be sent over to England to be accommodated at Bethlem. Something much better than that was, however, done for them, by providing the separate asylum at Dundrum, which thus became, in 1850, the first separate and distinct asylum set apart especially and entirely for criminal lunatics.

Broadmoor Asylum was not actually finished and opened until 1863; and it may be observed, in passing, that, inasmuch as Dundrum is one-third of the size of Broadmoor, whilst the population of Ireland is only one-fifth of that of England, Ireland is, at the present time, provided with a larger proportionate amount of accommodation than England.

I had prepared a short analysis of the Report, already alluded to, of the Commission recently appointed to inquire into the whole question of criminal lunacy, but time warns me to pass on; and this I do the more readily as the Report itself is accessible to all.

I have no doubt that most of the members of this Association have read that report, although I cannot of course pretend to form any opinion as to what conclusions those members who have read it may have arrived at.

Probably one of the chief points upon which a difference of opinion may have arisen has been the question of the removal to county asylums of persons whose sentences have expired, and who are no longer "criminal lunatics," as the term is defined by statute; but upon this point I think that some amount of misunderstanding exists.

The idea seems to be prevalent that the removal of such persons is an arrangement applicable only to Broadmoor; but this is not so. At the expiration of the sentence the patient ceases to be ranked as a criminal, not only in England, but also in Ireland and in Scotland; and, therefore, at Dundrum those whose sentences have expired are then removed. The same plan is employed in Scotland; and in the ninth report of the

General Board of Commissioners in Lunacy for Scotland the following passage occurs :—

"Criminals who become insane in prisons are removed at the expiration of their sentences to the local prison from which they were received, in order to be liberated. As a rule, they are, on liberation, immediately taken in charge by the police, or by the inspector of the poor, and placed in the asylum of their district as ordinary patients. In this way the accumulation of criminal lunatics in the lunatic department of the prison is, in some degree, prevented, as well as the growth of their numbers as a distinct class of the insane. This procedure helps to account for the comparatively small number of so-called criminal lunatics in Scotland."

An opposite plan would multiply the number so enormously that three or four establishments would be required; and, besides this, if a large class of criminal lunatics were created in that way, it would be necessary to provide for them specially. One chief point that increases the expense of the care of criminal lunatics is the necessity of making greater provision for their safe custody. Those who are not familiar with the working of an establishment for criminal lunatics can scarcely realise how much that element increases the actual cost of maintenance. It is, therefore, in the interests of the State, very desirable that no larger number should be included in the class of criminal lunatics than is absolutely necessary. The person who has come to the end of his sentence has actually paid the penalty, and there is a natural feeling against making anyone pay a penalty twice over. Many of these patients were really lunatics at the time of being sentenced, and, if the matter be regarded from every point, it will probably be found that the greatest hardship lay in sentencing them.

The evils of sentencing persons who are really insane to penal servitude or imprisonment, are much graver than is commonly supposed. If the punishment is to be carried out in its entirety it necessarily involves much suffering; indeed, penal servitude has been spoken of by one of the most eminent judges as "white slavery;" whilst if the sentence is not to be carried out thoroughly, but if the understanding is that it is to be modified in its severity, so as to suit the mental condition of the prisoner, it were surely better, in doubtful cases, not to pass sentence until after a satisfactory examination of the mental condition of the prisoner had been made. To sentence an insane person to the same punishment as would have been

incurred by him if he had been sane, acts as an encouragement to the practice of allowing insane persons to remain at large until after the commission by them of some act seriously hurtful to the community; whilst, on the other hand, every instance in which a prisoner is found, on his trial, to be insane acts as a reminder to the community that, little or much, it has failed in its duty in not having prevented the commission of the crime by placing the prisoner under proper care at an earlier date.

Those who may chance to have to endeavour to arrive at a decision as to whether a prisoner should be treated as a rational being, and be subjected to the ordinary punishment of his crime, or whether he should be treated as irrational, and be detained as a criminal lunatic—a question often involving much doubt and difficulty even when, as rarely happens, all the facts of the case can be clearly made out—will hail with gratification the recent work of Mr. Justice Stephen, a review of which has already appeared in the Journal.

Mr. Justice Stephen writes that he regrets to be unable to attend this meeting to-day, being compelled to be absent from London on circuit. He adds, in his letter to me, that he is pleased to find that so much interest is taken in his work, and goes on to say that the part of it which relates to madness was written with a sincere desire to conciliate the medical profession on a point upon which there has been much misunderstanding.

A reference to Mr. Justice Stephen's work will show that the intention thus expressed in his letter has been fully carried out. Before writing his chapter on the "Relation of Madness to Crime," the learned judge read the works of some of the leading medical writers upon insanity in this country and in Germany, including those of Drs. Bucknill, Hack Tuke, Maudsley and Griesinger; and that he has fully mastered the subject-matter of those works will, I am sure, be most fully admitted by any medical witness who may in the future be called to give evidence before him on the subject of insanity. The following extract gives a good indication of the manner in which he handles his subject:—

"What then is the meaning of a maniac 'labouring under such a defect of reason that he does not know that he is doing what is wrong?' It may be said that this description would apply only to a person in whom madness took the form of ignorance of the opinions of mankind in general as to the wickedness of particular crimes, murder, for instance, and such a state of mind would, I suppose, be so rare as to be practically

unknown. This seems to me to be a narrow view of the subject, not supported by the language of the judges. I think that anyone would fall within the description in question who was deprived by disease affecting the mind of the power of passing a rational judgment on the moral character of the act which he meant to do. Suppose, for instance, that by reason of disease of the brain a man's mind is filled with delusions which, if true, would not justify or excuse his proposed act, but which in themselves are so wild and astonishing as to make it impossible for him to reason about them calmly, or to reason calmly on matters connected with them. Suppose, too, that the succession of insane thoughts of one kind and another is so rapid as to confuse him, and finally, suppose that his will is weakened by his disease, that he is unequal to the effort of calm sustained thought upon any subject, and especially upon subjects connected with his delusion, can he be said to know, or have a capacity of knowing, that the act which he proposes to do is wrong ? I should say he could not." *

A little further on the learned judge writes :—

"The proposition, then, which I have to maintain and explain is that, if it is not, it ought to be the law of England, that no act is a crime if the person who does it, is at the time when it is done, prevented either by defective mental power or by any disease affecting his mind from controlling his own conduct, unless the absence of the power of control has been produced by his own default." †

Here, then, we have a very true and admirable explanation of words which have so often proved a stumbling block ; and we have also an explicit statement to the effect that the presence or absence of the power of control is a matter to be taken into consideration, with reference to the question of legal responsibility.

It is well to be reminded of this latter point, because there is danger, perhaps, of its being occasionally overlooked. But in the Lumleian Lectures given in this College by a distinguished Fellow, in 1878, I find the case of Dove referred to, which occurred thirty years ago. Lord Bramwell, then Baron Bramwell, was the presiding judge, and tried the case. In charging the jury, he said :—

"No doubt insanity is strong evidence of innocence, but it is not conclusive evidence ; and the question whether or not its existence rebuts the presumption of guilt in any particular case is entirely for the jury. The questions which by the law had

* "Hist. Crim. Law of England." Stephen. Vol. ii., p. 163.

† Vol. ii., p. 168, *op. cit.*

to be left to the jury were these: Did he know he was doing wrong? Could he help it?" That was the direction to the jury of one of the judges more than thirty years ago. It was not very long after the debate in the House of Lords on the celebrated McNaughten case; and it is, therefore, certain that the recognition by the law of England of power of control as an element in the case is not an innovation. "Could he help it?" were the words of the question left by Lord Bramwell to the jury, but the learned judge explained carefully that what he meant by the question was this: "If somebody had been standing over Dove with a pistol, and would have shot him if he poisoned his wife, would he have done it?" This is certainly a very forcible mode of putting the question; but, if it were settled that Dove knew at the time of its commission that his act was wrong, in the sense in which Mr. Justice Stephen takes the words, it is a mode of putting it for which much could doubtless be said.

Supposing we were to ask the same question with regard to Hadfield, when he fired at King George III., the answer might, possibly, also be in the negative, because Hadfield wished to be hanged, and if he had been shot, one of his objects would have been defeated; but then Hadfield is regarded by Mr. Justice Stephen,* and in that view of the matter I entirely concur, as a person who did not know, when he committed his act, that it was wrong.

Where premeditation is shown by an insane person in the commission of an insane act, the loss of control is not a loss of control over action, but a loss of control over the train of thought which appears to the individual to make the action desirable. The question as it presents itself to the mind of the medical man must ever be: Is the accused insane, and is the act for which he is being tried the product, or result, of his insanity? If this question be decided affirmatively in any particular case, it is practically equivalent to deciding that the accused did not know right from wrong with respect to the act in question; because an insane man can no more be said to know right from wrong with regard to an act done by him, as the result of his delusions or mental derangement, than he can be expected to estimate rightly the character of his delusions themselves. Insane persons who commit murder do not usually commit the act as the result of sudden impulse. It is commonly a matter they have thought over and intended to do for a considerable time, insane though they may be.

* Vol. ii., p. 167, *op. cit.*

A very interesting case, from which much may be learned, is recorded by Lord Blackburn in his evidence given before the Homicide Law Amendment Committee.

Lord Blackburn, before relating the case, made these observations: "I have read every definition (of insanity) which I ever could meet with, and never was satisfied with one of them, and have endeavoured in vain to make one satisfactory to myself. I verily believe that it is not in human power to do it. You must take it that in every individual case you must look at the circumstances and do the best you can to say whether it was the disease of the mind which was the cause of the crime or the party's criminal will. But this I am clear about: Whatever definition you give of insanity, it should apply to all crimes." And I should like to say, in passing, that this last point is one which cannot too often be urged.

Lord Blackburn then goes on to relate the case to which I refer, of a woman who had cut the throats of her infant and of an older child, aged 15, killing the former, and who would have killed another of her children if she had not been diverted from her intention.

I cannot omit here to say that this case has also been referred to by a veteran member of this Association in the Lumleian Lectures delivered by him in this College in 1878, and to express the fervent hope that those most instructive and valuable lectures may soon be reprinted in a permanent form.

Lord Blackburn says:—"The facts were these: The woman had more than once been insane, the insanity being principally brought on by suckling her child too long; that was the cause that had produced it before. She was living with her husband, and had the charge of this girl, a girl of about 15, an impotent girl, who lay in her bed all day. She was very kind to her, and treated her very well. They were miserably poor, and, very much owing to that, she continued to nurse her boy till he was nearly two years old; and suddenly, when in this state, she one morning, about 11 o'clock, went to the child, lying there in bed, aged 15, and deliberately cut her throat. Then she went toward her own child, a girl of five or six years of age, of whom she was exceedingly fond, and the girl, hearing a noise, looked up and said, 'What are you doing?' 'I have killed Olivia, and I am going to kill you,' was the answer. The child, fortunately, instead of screaming threw her arms round her mother's neck and said, 'No, I know you would not hurt your darling little Mopsy.' The woman dropped the

child, went downstairs, and went into a neighbour's house, told her what she had done, that she had killed Olivia and was going to kill Mary, 'but when the darling threw its arms round my neck I had not the heart to do it.'"

Lord Blackburn continues: "She clearly knew right from wrong, and knew the character of her act; for some little time after that she talked rationally enough, but before night she was sent to a lunatic asylum, raving mad, and, having recovered, she was brought to be tried before me at a subsequent assizes. On the definition in McNaughten's case, she did know right from wrong. She did know the quality of her act, and was quite aware of what she had done; but I feel it impossible to say that she should be punished. If I had read the definition in McNaughten's case and said, 'Do you bring her within that?' the jury would have taken the bit in their own teeth and said, 'Not guilty on the ground of insanity.' I did not do that; I told them that there were exceptional cases, and on that the jury found her not guilty on the ground of insanity, and I think rightly."

My present object in referring to this case is to point out that the word "suddenly," used to express the manner in which the poor woman killed her child, is liable to be misleading. The woman became an inmate of Broadmoor, and told me all about the matter. She said that she was very much depressed and weakened by suckling her infant, and that the catamenia had returned, and she had suffered a great deal from hæmorrhage, and, on the previous day, Sunday, she knew she was "getting bad again"—to use her own phrase. Two years before she committed this murder, she had attempted to drown herself and her child, but was rescued. She says she could not accurately describe what she felt, but she remembers that she did not want to live, and she felt it to be a right thing to kill the children before she killed herself. She says also, and this is the point to which I wish to call your attention, that she lay awake the whole of the Sunday night harbouring and pondering over her intention. She says that when her husband got up in the morning he said, "How are you?" She said, "Better," in order to induce him to go to his work and leave her; and then, after her husband had gone, she committed the murder. This is the history of all the cases of this kind of which I have been able to ascertain the real facts. The acts, in the absence of delirium, or sudden provocation, are commonly premeditated, and are the result of delusion, or, what comes to be same thing, of an insane train of thought; and these cases must, therefore,

be ranked in the same category as the case of Hadfield. The poor woman, whose case is so graphically related by Lord Blackburn, was unquestionably insane, and unable to rightly estimate the moral character of her act; but we must not overlook the lesson to be learned from the fact that the act was premeditated, and that the opportunity was carefully planned. The premeditated act was dwelt upon and thought over during the whole night; and the question arises as to what is understood when it is said that she could not control her conduct. She controlled herself the whole night. She controlled herself when she said to her husband that she was better. But, suppose we go deeper, and find that her reason was deranged, and that she was indeed in that condition which Mr. Justice Stephen says is really what he thinks the law means, when speaking of incapacity of knowing that the act was wrong. We find then truly a want of power of control, but it is a want of power of controlling the mental operations that lead to action. We are all of us familiar with the strange things that a patient, in an early stage of mania, does, that cannot by any possibility be of any advantage to him to do. Can we say that he knows clearly that those things are wrong? If so, why does he do them? The instances in which an insane person does things that are detrimental to him, whilst thinking that he is right in doing them, are so common as to run the risk of passing unheeded, and, therefore, I would ask your indulgence whilst I attempt to illustrate the point in question by alluding to a case now under my care. It is that of a soldier who shot a comrade, some fifteen years ago, in the hope that he might be hanged, wishing, in fact, to commit suicide in an indirect manner. After a time he recovered, to a great extent, and, for many years, he was comparatively well. He wrote many petitions to the Home Office, praying to be discharged, and so sensible were his letters that they were often referred to me for my report as to whether it would be safe to discharge him. My opinion was, however, that he was not a safe person to be at large. Recently he has had another acute attack of mania; and, whilst this attack was coming on, but before it had declared itself by any very well-marked signs, he wrote to the Secretary of State a petition praying for his discharge, and then wound up the petition, which was, in other respects, properly worded, as follows:—"And pardon me for saying, may the Devil sweat the hindmost." Now, did he realise that he was doing wrong when he wrote those words? I told him the next day that I had kept the petition on account of its strange

ending, upon which he said, "I wish you had sent it all the same. The Secretary of State will understand that."

This expression of opinion on the patient's part must have been the result of a condition of mind in which he was not capable of realizing the true character of the words that he had used. Two days later, he asked me to strangle one of the attendants, saying that he would have done so himself, and saved me the trouble, if he had had the opportunity. Supposing that he had succeeded in killing some one, would it have been right to consider the act as being the result of a want of control over conduct, or as being indicative of a sudden and uncontrollable impulse, or as being due to a mental condition in which, to use Mr. Justice Stephen's words, the man was "incapacitated from forming a calm estimate of the moral character of his act, in other words, had not a capacity of knowing that it was wrong?" *

I have ventured to occupy some of your time this afternoon with the consideration of this exposition by Mr. Justice Stephen of the criminal law in relation to madness, because the matter certainly is one upon which there has, as the learned judge says, been much misunderstanding. I feel convinced, however, that this misunderstanding has been due entirely to the inherent difficulties of the problem. It is possible that some of my hearers may not agree with the interpretation given by Mr. Justice Stephen, but I feel very strongly persuaded that a careful perusal of his chapter on madness will well repay all who may be called upon to give evidence with respect to the mental condition of persons accused of crime.

In conclusion, I have very much to thank you for, on account of the patient manner in which you have listened to these very imperfect remarks; and it is unnecessary to say that, in offering them, no attempt has been made to do more than to raise a few points which I now ask you to do me the favour of discussing.

* Vol. ii., p. 162, *op. cit.*